



wecomfiber

July 24, 2024

Chief, Foreign Investment Review Section ("FIRS")
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
U.S. Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530
Compliance.Telecom@usdoj.gov

Subject: Petition for Declaratory Ruling by Searchlight WCM Holdco, LLC Pursuant to
47 C.F.R. § 310(b)(4) and 47 C.F.R. §1.5000 *et seq.* (TT 23-048)

Dear Sir/Madam:

This Letter of Agreement ("LOA" or "Agreement") sets forth the commitments that Searchlight WCM Holdco, LLC ("SCP Holdco") and Wecom LLC ("Wecom") (collectively, "the Companies") make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI"), to address national security and law enforcement risks arising from the above-referenced petition to the Federal Communications Commission ("FCC").

In this petition, SCP Holdco is requesting that the FCC issue a declaratory ruling: (1) permitting aggregate foreign ownership exceeding 25 percent in SCP Holdco, the proposed controlling parent of Wecom LLC, the prospective licensee of certain common carrier wireless licenses,¹ and (2) granting specific and advance approval for specific non-U.S. individuals and entities to hold five percent or greater equity and/or voting interests in SCP Holdco.² The requests for specific and advance approval for equity and/or voting interests relate to the following individuals and entities: Erol Uzumeri (Canada); Oliver Haarmann (Germany);

¹ Through the transaction underlying this application, the current licensee, Wecom LicenseCo is expected to merge with and into Wecom LLC, with Wecom LLC being the surviving entity. As a result, the licenses will be assigned from Wecom LicenseCo LLC to Wecom LLC, which is wholly owned and controlled directly by SCP Holdco. *See In the Matter of Searchlight WCM Holdco, LLC*, Amended and Restated Petition for Declaratory Ruling, FCC File No. ISP-PDR-20230823-00008 (Oct. 12, 2023), at Section II(C) ("Licenses Covered by This Petition").

² FCC File No. ISP-PDR-20230823-00008; *see In the Matter of Searchlight WCM Holdco, LLC*, Petition for Declaratory Ruling, FCC File No. ISP-PDR-20230823-00008 (Aug. 23, 2023); *In the Matter of Searchlight WCM Holdco, LLC*, Amended and Restated Petition for Declaratory Ruling, FCC File No. ISP-PDR-20230823-00008 (Oct. 12, 2023); *see also* 47 C.F.R. § 310(b)(4) and 47 C.F.R. §1.5000(a)(1).

Platinum Compass B 2018 RSC Limited (United Arab Emirates); Abu Dhabi Investment Authority (United Arab Emirates); Epsom Investment Pte. Ltd. (Singapore); GIC Infra Holdings Pte. Ltd. (Singapore); GIC (Ventures) Pte. Ltd. (Singapore); and the Minister for Finance of the Government of Singapore (Singapore).

The Companies certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-referenced applications and petition that was conducted pursuant to Executive Order 13913.³ The Companies hereby adopt those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:

a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (“IT”) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.

b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.

c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

d. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the petition.

e. “Domestic Communications” (“DC”) means:

- (i) Wire Communications or Electronic Communications (whether stored or not), as defined by 18 U.S.C. § 2510, from one location within the United States, including its territories, to another location within the United States; or
- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

f. “Domestic Communications Infrastructure” (“DCI”) means any Wecom LLC system that supports any communications originating or terminating in the United

³ 85 Fed. Reg. 19643 (Apr. 8, 2020).

States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Wecom LLC to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which Wecom LLC has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access.

g. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4), and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

h. “Foreign” means non-United States, or its territories.

i. “Geolocation Data” means any information Wecom LLC collects from its customers regarding a customer’s location or the customer’s device location.

j. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, or judicial or arbitral body.

k. “Government-Controlled Entity” means entities ultimately owned and controlled by a Government, including but not limited to sovereign wealth funds and investment entities managing the assets of a Government.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Personally Identifiable Information” (“PII”) means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

o. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

p. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

q. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

r. “U.S. Records” means Wecom LLC’s customer billing records; Subscriber Information; PII; Sensitive Personal Data; CDRs; IPDRs; CPNI; Geolocation Data; the existence, contents, responses to, and results of Lawful U.S. Process, including the Lawful U.S. Process demands themselves; and any other information used, processed, or maintained in the ordinary course of business related to the services that Wecom LLC offers within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709.

Change in Ownership and Service Portfolio

2. The Companies agree to provide USDOJ notice of any changes to the Companies' business(es), including but not limited to corporate structure changes,⁴ ownership changes,⁵ corporate name changes of the Companies, business model changes, corporate headquarter location changes, or any relocation of the Companies' business operations to locations outside of the United States no less than **30 days** in advance of such change.

3. The Companies agree to provide USDOJ notice within **30 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the Companies' debts.

4. The Companies agree to provide USDOJ notice of any material change to its current portfolio of service offerings, including offering other services beyond its current service portfolio, no less than **30 days** in advance of such change.

Lawful U.S. Process and Requests for Information

5. The Companies agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government or Foreign Government-Controlled Entity without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

6. The Companies agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government or Foreign Government-Controlled Entity without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

7. The Companies agrees to refer any requests for information or Access described in this Section from a Foreign Government or Foreign Government-Controlled Entity, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event

⁴ For the purposes of this paragraph, "corporate structure changes" do not include non-substantial or pro forma transactions as defined in the FCC's rules, which do not require notice to the FCC 30 days in advance of such changes. The Companies agree to provide USDOJ notice of such pro forma changes in corporate structure concurrently with any filing required to be made with the FCC.

⁵ For the purposes of this paragraph, "ownership changes" includes any new investment by, or change in existing rights of, any non-U.S. individual or non-U.S. entity holding five percent or greater equity interest in Wecom LLC that results in such entity obtaining a right to: (a) manage or control the activities of Searchlight Fiber Alliance, LLC; SCP Holdco; or Wecom LLC; (b) appoint one or more members to a board of directors or similar board or managers of Searchlight Fiber Alliance, LLC; SCP Holdco; or Wecom LLC; (c) exercise voting interests in Searchlight Fiber Alliance, LLC; SCP Holdco; or Wecom LLC; and/or (d) gain Access to Wecom LLC's DC, DCI, U.S. Lawful Process, or U.S. Records. For the avoidance of doubt, "ownership changes" includes any event causing non-U.S. limited partners in Searchlight Fiber Alliance, LLC that are insulated at the Date of FCC Approval to become uninsulated. With respect to any calendar month during which any non-U.S. owner of the Companies that has not previously been disclosed to the USDOJ has acquired a direct or indirect equity interest in Wecom LLC of five percent or more, the Companies shall provide an updated list of all non-U.S. owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Wecom LLC no later than the end of the following calendar month.

later than **five days** after such a request, or legal process, is received by, or made known to, the Companies, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

Site Visits and USDOJ Requests for Information

8. The Companies agree to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of the Companies' employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

Annual Report

9. The Companies agree to provide an annual report to USDOJ regarding their compliance with this LOA, to include:

- a. If the Companies submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that the Companies were required to report under the LOA during the year;
- b. An updated organizational chart showing all owners with a five percent or greater ownership share in Wecom LLC;
- c. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ; and
- d. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The Companies agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to the Companies in the future:

- Makenzie Skopowski, USDOJ (at Makenzie.Skopowski@usdoj.gov); and
- Tyler Wood (at Compliance.Telecom@usdoj.gov).

Upon USDOJ request, the Companies agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Third-Party Compliance Audit

10. At its sole discretion, but no more frequently than once every calendar year unless the original audit is found by USDOJ to have been unsatisfactory, USDOJ may request that the Companies undergo a neutral third-party compliance audit of LOA compliance. In connection with the audit:

- a. Within **60 days** of USDOJ requesting a third-party audit, the Companies will nominate a third-party auditor. Within **60 days** of the nomination, USDOJ will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, the Companies will disclose information regarding the Companies' and nominated auditor's pre-existing relationship (if any).
- b. The Companies will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.
- c. The Companies will ensure the selected third-party auditor submits, within **15 days** of USDOJ non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to USDOJ approval. The statement of work shall allow for direct communication between USDOJ and the third-party auditor, without notice to or participation of the Companies.
- d. The Companies will ensure that the executed engagement agreement with the third-party auditor is provided to USDOJ within **seven days** of execution.
- e. The Companies will ensure that their agreement with the third-party auditor will require the third-party auditor to deliver promptly to USDOJ and the Companies all reports and related information generated or gathered during its review that relate directly to the Companies' compliance with the terms of this LOA and will agree to meet independently with USDOJ upon request. Unless otherwise agreed to by USDOJ, the Compliance Audit report shall be submitted to USDOJ by the auditor at the same time it is submitted to the Companies.

General Provisions

11. The Companies agree that this LOA is binding upon, and inures to the benefit of, the Companies and their respective successors and assigns. For purposes of this LOA, successors and assigns includes any corporate name changes. The Companies may not assign any obligation under this LOA without the prior written consent of USDOJ.

12. If for any reason, Wecom Licensee LLC remains the holder of the relevant licenses following the consummation of the transaction underlying the petition, instead of Wecom LLC, "Wecom Licensee LLC" should be read to replace "Wecom LLC" throughout this LOA. If Wecom LLC subsequently holds the licenses, then Wecom LLC should be read throughout this LOA where mentioned.

13. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the Companies agree to resolve USDOJ's concerns, according deference to USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement

concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Companies or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

14. The Companies agree that in the event that the Companies breach the commitments set forth in this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Companies or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

15. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays (meaning federal holidays in the United States). Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

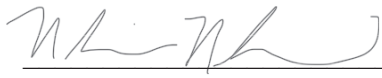
16. Any non-objection, consent, or approval provision applicable to USDOJ pursuant to this LOA shall be tolled during a lapse in appropriations or any time when the Federal Government in the greater Washington, D.C. area is closed.

17. The Companies agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

18. The Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that the Committee has no objection to grant of the petition.

19. The Companies further understand that, even after the FCC's grant of the petition, the Committee may conduct a license review for additional or new risks to U.S. national security and law enforcement interests at any time, under Section 6 of Executive Order 13913. The ownership changes described in Paragraph 2 (including Footnote 5), including an entity holding five percent or greater equity in Wecom LLC gaining or exercising voting interests in Searchlight Fiber Alliance, LLC; SCP Holdco; or Wecom LLC, may be considered an additional or new risk to U.S. national security and law enforcement interests that would cause the Committee to initiate a license review.

For Searchlight WCM Holdco, LLC



Nadir Nurmohamed, Authorized Person
Searchlight WCM Holdco, LLC
July 24, 2024

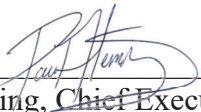
For Wecom LLC

Paul Fleming, Chief Executive Officer
Wecom LLC
July 24, 2024

For Searchlight WCM Holdco, LLC

Nadir Nurmohamed, Authorized Person
Searchlight WCM Holdco, LLC
July 24, 2024

For Wecom LLC



Paul Fleming, Chief Executive Officer
Wecom LLC
July 24, 2024